

Reeta Rani v. State of U.P.

Allahabad High Court · Division Bench · 25 May 2022 · Writ-C No. 6172 of 2022 · Writ-C No. 6172 of 2022 · **Writ disposed; relegated to clause 6.5; coercive action stayed eight weeks.**

HEADNOTE

A writ seeking quashing of a distribution licensee's demand notice and a direction to decide an existing objection was disposed of without merits. The consumer was given liberty to file an objection under para 6.5 of the U.P. Electricity Supply Code, 2005, to be decided in a time-bound manner after hearing; coercive recovery was stayed for eight weeks or until that objection was decided, whichever was earlier.

FACTUAL SUMMARY

Reeta Rani, a consumer, filed this writ petition in the Allahabad High Court seeking certiorari to quash a demand notice dated Nil issued by the power distribution corporation (respondent No. 3) and mandamus to decide her objection dated 4 October 2021. Counsel for the corporation stated on instructions that the petitioner may file an objection against the demand, which would be decided in accordance with law within a time-bound period. The Court recorded that statement and disposed of the petition without examining the merits of the demand.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed demand — clause 6.5 objection

HOLDING

Without expressing any opinion on merits, the writ challenging a demand notice was disposed of with liberty to submit an objection under para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if so submitted, it was to be decided in accordance with law within the next four weeks after hearing, and no coercive action on the demand was to be taken for eight weeks or until disposal of the objection, whichever was earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court declined to examine the demand on merits and relegated the consumer to a para 6.5 objection before the licensee, with a time-bound decision and limited stay of coercive recovery. ¶ 1

clause-6.5-statutory-remedy-disputed-bill A disputed demand notice was treated as a matter for the statutory para 6.5 objection, not for certiorari on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE IMPUGNED DEMAND NOTICE AND THE PENDING OBJECTION DATED 4 OCTOBER 2021

The Court expressly declined to express any opinion on merits and required a fresh para 6.5 filing rather than deciding the existing objection. ¶ 1